

and Plaintiff's objections to Defendant's Accounting in the Probate Case allege invasion of the same primary rights—right to be free from Defendant's mismanagement of estate assets and right to receive the benefits of Defendant properly carrying out her administrator duties. If the Probate Case resolves the claims raised against Defendant pertaining to the Accounting, that will be res judicata as to at least some of the claims in the present lawsuit. If for any reason the Probate Case is not decided on the merits or does not resolve all causes raised in the Complaint, the present action can then proceed.

Finally, and separate from section 430.10, subdivision (c), the Court finds that, as a matter of judicial efficiency and to avoid inconsistent rulings, the present action should be stayed pending disposition of the issues in the Probate Case. (See *Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 746-47 [“Granting a stay in a case where the issues in two actions are substantially identical is a matter addressed to the sound discretion of the trial court.”].) For this separate reason, the Court elects to exercise its inherent discretion to stay the present action pending resolution of Plaintiff's objections to Defendant's Accounting in the Probate Case. This ruling is without prejudice to Plaintiff formally pursuing his claims, as set out in the present Complaint, against Defendant in the Probate Case (i.e., by way of a verified petition).

**PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.**

**Conservatorship of Beverly J. Ribelin**

**19PR000041**

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

**APPEARANCE REQUIRED**

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**In the Matter of the Melvin D. Cooke Trust**

**26-65041**

TWELFTH ACCOUNT AND REPORT OF TRUSTEE; PETITION FOR SETTLEMENT OF ACCOUNT, AND FOR APPROVAL OF TRUSTEE FEES

**TENTATIVE RULING:** The Petition is GRANTED, except the amount of compensation awarded to Petitioner is \$45,220.89, as provided in the Declaration of Frank Toller filed on May 22, 2026.

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**In The Matter of Federico E. Yagin**

**26PR000053**

REVIEW HEARING: CONFIRM FILING OF MC-356

**TENTATIVE RULING:** The matter is CONTINUED to July 2, 2026, at 8:30 a.m. in Dept. B. The purpose of this hearing is to confirm petitioner's filing of the “Receipt and Acknowledgement of Order for the Deposit of Money Into Blocked Account (form MC-356)”

following the Court's order approving the compromise of claim for a minor and order to deposit funds in a blocked account. There is no MC-356 form on file. This is the first continuance. If an MC-356 form is properly on file prior to the next hearing date, the review hearing may be vacated. If the form is still not on file, the Court will require appearances to explain the ongoing delay. The Clerk is directed to provide notice.